



United States
Attorney's Office
Western District of Tennessee



Federal Grand Jury returns Second Superseding Indictment against Memphis Gynecologist

Monday, November 3, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Tennessee

Memphis, TN – A federal grand jury in the Western District of Tennessee returned a second superseding indictment charging **Sanjeev Kumar, 44**, with crimes related to his performance of medically unnecessary gynecologic procedures with medical devices he held under unsanitary conditions and reused on patients, when he was required to dispose of or properly reprocess those devices. United States Attorney D. Michael Dunavant announced the second superseding indictment today.

According to the second superseding indictment, Kumar also billed Medicare and Medicaid as if the procedures were medically necessary, and as if he had used a new or properly reprocessed device for each procedure. The second superseding indictment alleges that Kumar engaged in this conduct from September 2019 to April 2024.

Kumar was originally indicted in February 2025, and then in June 2025 in a superseding indictment. In each of Counts 5-9, 12-13, 16-18, 21-22, and 25 of the superseding indictment, the government charged Kumar with adulteration or misbranding of one device type during a period of time. Kumar filed a motion to dismiss these 13 counts, arguing that they improperly combined multiple instances of conduct occurring over multiple months or years, even though the statute under which he is charged, 21 U.S.C. § 331(k), prohibits only single acts of conduct.

On October 17, 2025, Chief U.S. District Judge Sheryl H. Lipman dismissed these counts from the superseding indictment, holding that an adulteration and misbranding charge must consist of an individual, distinct act, and it cannot sweep up thousands of acts of adulteration and misbranding incidents over a continuous course of conduct. Judge Lipman also noted that the government has discretion to present to the jury the thousands of acts of adulterating and misbranding that it has alleged; but it must do so through properly charged counts.

The second superseding indictment returned charges Kumar with 27 additional counts of adulteration and misbranding of medical devices. Each of these counts alleges a single, discrete act of adulteration or misbranding, in compliance with the Court's October 17, 2025 order.

The trial in this case is scheduled for December 1, 2025.

The case is being investigated by the United States Health and Human Services, Office of Inspector General (HHS-OIG); the United States Food and Drug Administration, Office of Criminal Investigations (FDA-OCI); the Federal Bureau of Investigation (FBI); and Tennessee Bureau of Investigation (TBI).

Assistant United States Attorneys Lynn Crum, Scott Smith, and Sarah Pazar Williams are prosecuting this case on behalf of the United States.

The charges and allegations contained in the second superseding indictment are merely accusations of criminal conduct, not evidence. All defendants are presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

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